

Smt. Saroj Devi v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 6 February 2012 · WRIT - C No. - 6461 of 2012 · **Writ disposed of; petitioner relegated to clause 7.10(II) statutory remedy.**

HEADNOTE

A writ seeking quash of an Executive Engineer's order dismissing a consumer's representation is not entertained where paragraph 7.10(II) of the U.P. Electricity Supply Code, 2005 supplies a statutory grievance remedy; the petitioner is left to that forum.

FACTUAL SUMMARY

Smt. Saroj Devi petitioned the Allahabad High Court to quash an order dated 3 January 2012 of the Executive Engineer dismissing her representation. The State and the distribution licensee appeared. Their counsel pointed to a statutory grievance remedy under paragraph 7.10(II) of the U.P. Electricity Supply Code, 2005, and submitted that the writ could not be entertained while that forum remained available.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10

statutory-grievance-remedy

HOLDING

A writ petition challenging an Executive Engineer's dismissal of a consumer's representation cannot be entertained when paragraph 7.10(II) of the U.P. Electricity Supply Code, 2005 provides a statutory remedy for redressal of the grievance; the petitioner may avail that remedy. ¶ 1

FLAG Court cites para 7.10 (II) in roman numerals; catalog has 7.10, 7.10(i) and 7.10(iv), not 7.10(ii).

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE EXECUTIVE ENGINEER'S ORDER DATED 03.01.2012 DISMISSING THE PETITIONER'S REPRESENTATION

Writ disposed of solely on the existence of the clause 7.10(II) statutory remedy. ¶ 1